SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK: COMMERCIAL DIVISION

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Dr. PETER DASZAK, Ph.D.,

as Plaintiff,

v.

ECOHEALTH ALLIANCE INC., et al.,

as Defendants.
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Index No. 164611/2025

PLAINTIFF'S FIRST NOTICE FOR DISCOVERY AND INSPECTION

PLEASE TAKE NOTICE, that pursuant to CPLR 3120, Plaintiff through his undersigned counsel, the Law Offices of Joseph E. Gasperetti hereby demand that Defendants produce and permit Plaintiff to inspect and copy the documents and things designated below which are in the possession, custody and/or control of Defendants. Such production shall be made on or before August 10, 2026, at 10:00a.m., at the office of Plaintiff's attorneys, the Law Offices of Joseph E. Gasperetti, 2300 Fifth Avenue, New York, NY 10037.

Defendants, or someone acting on their behalf, shall inspect the documents and things produced and reasonable arrangements for copying shall be made. Alternatively, copies of the documents may be produced electronically in such a manner as to be received by Plaintiff's attorney prior to the aforesaid date, with the originals retained in the custody of Defendant.

The following definitions apply throughout this Notice for Discovery and Inspection:

I. DEFINITIONS AND INSTRUCTIONS

A. Definitions

Unless specifically indicated, or otherwise required by the context in which the terms, names and instructions are used, the following definitions shall be applicable herein:

1. The term "document" shall be construed to include, without limiting the generality of its meaning, all originals, non-identical copies, drafts and/or drafts with marginalia of any printed, typewritten, handwritten or otherwise recorded or graphic matter of whatever character, however produced or reproduced, whether or not now in existence, including but not limited to, contracts, files, agreements, administrative complaints, agency contracts, files, agreements, administrative complaints, agency forms or questionnaires, correspondence, e-mails, telegrams, notes or sound recordings of any type of conversation, meeting or conference, memoranda, graphs, charts, inter-office communications, jottings, announcements, depositions, affidavits, photographs, motion

pictures, studies, analyses, reports, summaries and results of investigations and tests, reviews, statistical records, ledgers, books of acount, vouchers, bank checks, handbooks, manuals, bank statements, audit reports and other statements, invoices, receipts, confirmations, computer-developed, stored or produced data, notebooks, desk calendars, appointment books, newspaper articles, diaries or papers similar to any of the foregoing, however entitled, denominated or described. This term expressly includes any notes created (electronic or otherwise) during all Zoom conferences.

2. The terms “concerning” or “related” shall be construed broadly to mean relating to, referring to, describing, evidencing, pertaining to, constituting, comprising, containing, setting forth, showing, disclosing or describing, directly, tangentially or indirectly.

3. “Person,” “individual,” or “entity” includes, but is not limited to, an individual, a limited partnership, a corporation or other business association, or government agency or entity, or any other entity. All references to “person” in the

singular number include3s the plural number and vice versa.

4. "Statement" means any oral communication, whether or not made in the presence of another person, in a telephone conversation, or in any other context, regardle4ss of whether it has been reduced to writing or otherwis3e recorded or referred to in any document.

5. "Indentify" when used withy respect to an individual includes providing the following information:

a) state the individual's full name;

b) the individual's present or last known home and business addresses;

c) the individual's home and business telephone numbers;

d) the identity of the individual's employer or employers at the time of the matter inquired into and the individual's position at that time; and

e) the identity of the present employer of the individual and the position now held by the

individual.

6. "Identify" or "identity" when referring to an entity such as a corporation, partnership; film, or other organization includes providing ther following information:

a) the full name of the entity;

b) the entity's present or last known address;

c) the full name and business address of the entity at the time the matter is inquired into;

d) the type of business conducted by the entity; and

e) "Complaint" shall refer to Plaintriff's Complaint in the above-captioned action, including any initial and all amended pleadings.

7. "Identify" or "identity" when used with respect to a document ihncludes providing the following information:

a) a description of the type of document;

b) date or dates appearing on the face of the

document or, if no date appears, the date upon which the document was prepared;

c) the identity of its originator, including all persons who authored, wrote, signed, initiated, dictated, reviewed, approved or otherwise participated in creating the document;

d) the identity of the addressee(s) and of each other recipient;

e) The title and the general subject matter of the document and the number of pages of the document;

f) any numerical or alphabetical designation applied to the document;

g) the designation and location of the file(s) where the original and each copy are normally and/or presently being kept and the identity of each custodian thereof; and

h) if the document no longer exists, a statement describing the disposition that was made of it and the identity of the person who disposed of it.

8. "Dr. Daszak" shall mean Plaintiff Dr. Peter Daszak,

Ph.D., and/or any of this representatives or agents.

9. "Defendants" collectively shall mean the defendant EcoHealth Alliance, Inc. And Juliet Agranoff, Dr. Frederick Baum III, Joe Curry, Karen Denton, Ralph E. Gomory, Nancye Green, Nancy Griffin, Robert Hoguet, Charles Hirschler, Geoffrey Potter, Ellen Sedlarz, Lisa Silvershein, Jarret Stephens, Pamela M. Thye, Carlota Vollhardt, Steven Wils, and Dr. Lilian Wu defendants I the action and/or any of their present or former officers, directors, employees, partners, agents, representatives, consultants, experts, attoorneys, joint venturers, corporate parents, subsidiaries, or affiliates.

10. The term EHA shall mean the defendant EcoHealth Alliance, Inc.

11. The terms "and/or" and "any and all" shall be read conjunctively or disjunctively as necessary to make your response as inclusive as possible rather than an exclusive as possible.

12. "Parties" means and refers to any persons or entities involved in these proceedings, including Plaintiff and Defendants.

13. References to the singular shall include the plural,

and references to the plural shall include the singular.

14. The use of a verb in any tense shall be construed as the use of the verb in the past or present tense, whenever necessary to bring within the scope of the Request all answers which might otherwise be construed to be outside its scope.

15. For all references herein, when gender is used, the masculine form will be taken to include the feminine. The singular form will be taken to include the plural.

16. Unless otherwise stated, the relevant time period for these interrogatories shall be January 1, 2023 to date.

17. If the responding party claims that the response to any interrogatory is privileged or for any other reason not discoverable, the response hereto shall state the nature of the factual and legal basis for the privilege claimed or other ground for non-production.

II. INSTRUCTIONS

A. Defendant shall respond separately to each Request set forth below.

B. Documents shall be produced in their original state, i.e., in their original file folder in the exact order as found, without removal or rearrangement of anything contained herein.

C. Each demand herein is continuing and requires prompt supplementary responses if further responsive documents are subsequently obtained or discovered by you or otherwise come into your possession.

D. Any demand for a document by, to, or from any person identified in the demand shall include any other persons acting on behalf of the person identified, including, but not limited to, said person's employees, agents, and attorneys.

E. If you claim that any responsive document is privileged or for any other reason not discoverable, the response hereto shall state: (1) the type of documents; (2) the date of the document; (3) the title of the document; (4) a description of the subject matter of the document; (5) the name(s) and address(es) of each person(s) who prepared the document, the person(s) to whom it was

directed or circulated and the person(s) now in possession of the document; and (6) the nature of and factual basis for the privilege claimed or other ground for non-production.

F. The singular form of a word shall be interpreted as plural and the plural form of a word shall be interpreted as singular whenever appropriate in order to bring within the scope of this document request information or documents, which might otherwise be considered top be beyond their scope.

III. DOCUMENT REQUESTS

A. All documents identified in response to the plaintiff's first set of interrogatories.

B. All documents relating or referring to the defendants decision to terminate the plaintiff's employment.

C. All documents or communications referring or relating to the defendants' decision to terminate the plaintiff as member of EHA's Board of Directors.

D. All documents referring or relating to the cause, if any, for the defendants' termination of plaintiff's employment.

E. All documents relating or communication between or among

the defendants relating or referring to the cause, if any, for the termination.

F. A copy of the defendants' financial statement as at January 2025.

G. All document referring or relating to communications with any agency of the United States Government concerning the termination of plaintiff as a member of defendants' Board of Directors and as CEO of EHA.

H. All minutes of any and all meetings the defendants' Board of Directors, or any subgroup thereof, for the years 2025 to date.

I. All documents referring or relating to communication between the defendants and any public relations agency or the press concerning the termination of plaintiff's employment.

J. All insurance policies owned by the defendants which refer or relate to, or fall to the attention, of this action.

K. All communication between or among the defendants and the plaintiffs concerning any severance or any other post-termination benefits offered to be paid to plaintiff.

L. All recordings or notes, including electronic notes, relating to the January 2025 Zoom conference during which plaintiff was terminated.

DATED: New York, NY
July 16, 2026

Law Offices of Joseph E. Gasperetti

By /s/Joseph E. Gasperetti
Joseph E. Gasperetti

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TO: Jackson Lewis
(Attorneys for defendants)
Attn: Joseph Anci, Esq.
(Via e-mail and ECF)